

Rizwan v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 December 2009 · Writ - C No. 67130 of 2009 · **Writ disposed; petitioner relegated to Regulation 6.5(b) bill objection.**

HEADNOTE

A consumer aggrieved by an electricity bill is to file an objection under Regulation 6.5(b) of the U.P. Electricity Supply Code, 2005. The High Court will not examine the bill on merits and will dispose of the writ by directing that objection to be decided expeditiously in accordance with law.

FACTUAL SUMMARY

Rizwan petitioned the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Ltd. and others, challenging an electricity bill dated 18 November 2009 annexed as Annexure 6. He appeared through Mrs. Tabassum Hasmi; the licensee through Pankaj Kr. Shukla. The Division Bench of R.K. Agrawal and Jayashree Tiwari JJ. took up Writ-C No. 67130 of 2009 in Court No. 2 on 9 December 2009. The record disclosed no further facts of connection, consumption, or the basis of the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing complaint / disputed bill

HOLDING

A consumer aggrieved by an electricity bill may file an objection under Regulation 6.5(b) of the U.P. Electricity Supply Code, 2005; the writ court will not decide the bill on merits and will instead require the concerned authority to decide that objection expeditiously in accordance with law. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer aggrieved by an electricity bill is to file an objection under Regulation 6.5(b) of the U.P. Electricity Supply Code, 2005. The High Court will not examine the bill on merits and will dispose of the writ by directing that objection to be decided expeditiously in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL DATED 18.11.2009

Merits of the demand left to the 6.5(b) objection. ¶ 1